

02:00 PM **LINE 9**

25-CIV-03331

DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DEFENDANT LEAH BOTTINI'S DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Leah Bottini's demurrer to plaintiff Diana Dunkelis's first amended complaint (FAC) is SUSTAINED with and without leave to amend, as set forth below.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Thirteenth Cause of Action for Harassment (Gov. Code, §12940, subd. (j))

The elements of a cause of action for harassment of an employee under the Fair Employment and Housing Act (FEHA) are as follows: (1) the plaintiff must be an employee, applicant, unpaid intern or volunteer, or a person providing services pursuant to a contract who belongs to a protected class, (2) the plaintiff must show that they were subjected to unwelcome harassment, (3) the harassing conduct must be because of the plaintiff's membership in a protected class, (4) the harassment must be sufficiently severe or pervasive to alter the conditions of the victim's employment and create a hostile or abusive working environment, and (5) the standard for employer liability depends on who committed the harassment with an employer being strictly liable for harassment committed by a supervisor or agent while harassment by a non-supervisory co-employee is unlawful only if the employer, or its agents or supervisors, knew or should have known of the conduct and failed to take immediate and appropriate corrective action. (Gov. Code, § 12940; *Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202-203; *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228.)

Plaintiff alleges that defendant Leah Bottini discriminated against her based on plaintiff's age by interfering with plaintiff's computer, slowing it down, failing to give plaintiff the password to plaintiff's new computer, disorganizing the firm's blue files which plaintiff was responsible for maintaining, failing to inform plaintiff of the arrival of medical records, failing to forward subpoenas, locking plaintiff out of filing cabinets and storage rooms, hiding client documents, locking away supplies, converting settlement documents to password protected pdfs so that plaintiff could not access them, changing factual information in documents created by plaintiff so that the information was incorrect, throwing out redacted client documents and serving unredacted documents on opposing counsel, taking plaintiff's newly purchased office chair, turning off the heat when leaving the office while plaintiff was still working, and making false statements about plaintiff to clients. (FAC, ¶ 54.) Plaintiff alleges that Bottini did these

acts because she wanted plaintiff's job, and was later promoted into plaintiff's position after plaintiff was terminated. (*Id.*, ¶ 53.)

Plaintiff further alleges that she was subjected to unwanted harassing conduct by Bottini, because of plaintiff's age, "which led to adverse employment actions against plaintiff, including but not limited to, subjecting her to differential and demeaning treatment, oppression, unhealthy work conditions (i.e. working in freezing temperatures and conditions conducive to mold, fungi, and bacteria), decrease in work load, unwelcome and inappropriate comments and behavior, threats of termination if she spoke out, and actual wrongful termination, in addition to subjecting Plaintiff to a work environment permeated with illegal and unwanted harassing and discriminatory conduct." (FAC, ¶ 240.)

Bottini argues that these allegations do not show that plaintiff was treated differently because of her protected status and that they do not show severe and pervasive conduct that gives rise to a hostile work environment.

The alleged conduct, taken as true for purposes of demurrer, does not state a cause of action for harassment based on age. Plaintiff has not pled facts showing that Bottini took these allegedly harassing actions because of plaintiff's age. Plaintiff also has not alleged that Bottini was a supervisor. Nor has she alleged that Donig knew or should have known of Bottini's allegedly harassing actions.

The demurrer to this cause of action is therefore **SUSTAINED with leave to amend.**

B. Sixteenth Cause of Action for Intrusion into Private Affairs

A common law claim for intrusion into private affairs requires a plaintiff to prove two elements: (1) intentional intrusion into a private place, conversation or matter, and (2) in a manner highly offensive to a reasonable person. (*Marich v. MGM/UA Telecommunications, Inc.* (2003) 113 Cal.App.4th 415, 421.)

Plaintiff alleges that defendants installed hidden cameras above her desk and in the reception area, and that she had a reasonable expectation of privacy around her desk. (FAC, ¶ 276.) The FAC is unclear as to whether plaintiff alleges that Bottini installed any cameras. In light of the original Complaint's allegation against only the Donig defendants, and the lack of specificity, these allegations are insufficient to support a cause of action for intrusion into private affairs against Bottini. Plaintiff additionally alleges that: "Defendants violated Plaintiff's right to privacy when MISS BOTTINI was given remote access the office computers, including Plaintiff's computer, as well as access to all of MR. DONIG's emails. This was a violation of Plaintiff's reasonable expectation of privacy—Plaintiff sent MR. DONIG emails that were intended for him only, not for MISS BOTTINI." (*Id.*, ¶ 277.) The allegations relating to emails are insufficient to support the cause of action because plaintiff had no reasonable expectation of privacy once the emails were sent, since Donig was free to share the contents of emails sent to him with others. The allegations are also insufficient in relation to access to office computers, since there was no reasonable expectation of privacy on a work device.

The demurrer to this cause of action is **SUSTAINED with leave to amend** only as to the placement of a camera by Bottini. If plaintiff has facts supporting such claims, her counsel must appear at the hearing and state whether such facts exist. If no such facts are alleged to exist, the demurrer to this cause of action is **SUSTAINED without leave to amend**.

C. Seventeenth Cause of Action for Intentional Interference with Prospective Economic Relations

Under California law, a cause of action for intentional interference with prospective economic relations requires five essential elements: (1) an economic relationship between plaintiff and some third party, with the probability of future economic benefit to plaintiff; (2) defendant's knowledge of the relationship; (3) intentional acts on part of defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to plaintiff proximately caused by acts of defendant. (*ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1002, fn 5.)

Plaintiff does not allege that Bottini is a third party as between plaintiff and the Donig defendants, but instead alleges that she is an employee of defendant Law Office of Reuben J. Doing. (FAC, ¶ 4.) The first element therefore is not satisfied.

The demurrer to this cause of action is **SUSTAINED without leave to amend**, because plaintiff cannot allege a third party relationship without contradicting the FAC.

D. Eighteenth and Nineteenth Causes of Action for Inducing Breach of Contract and Intentional Interference with Contractual Relations

These causes of action are pled in the alternative "in the event it is determined Plaintiff and DONIG were in a contractual relationship." (FAC, ¶¶ 296, 308.) However, because plaintiff affirmatively alleges that there was no contract and that she "was misclassified as an independent contractor," the elements of these causes of action cannot be satisfied. (*Id.*, ¶ 295.)

The demurrer to these causes of action is **SUSTAINED without leave to amend**.

E. Tenth Cause of Action for Violation of the UCL

To state a claim for violation of California's Unfair Competition Law (UCL), a plaintiff must establish: (1) that the defendant engaged in a business act or practice falling within at least one of three prongs — unlawful, unfair, or fraudulent — and (2) that the plaintiff has standing by having suffered injury in fact and lost money or property as a result of the unfair competition. (Bus. & Prof. Code, §§ 17200, 17204.)

Plaintiff alleges that "Defendant, LEAH BOTTINI, engaged in unlawful, unfair, and fraudulent business practices as evidenced by violations of public policy and tortious economic interference practices, such as, Intentional Interference with Prospective Economic Relations or, in the alternative, Inducing Breach of Contract and Intentional Interference with Contractual Relations." (FAC, ¶ 196.) However, as discussed above, plaintiff's claims for intentional

interference with prospective economic relations or, in the alternative, inducing breach of contract and intentional interference with contractual relations are insufficient, and therefore cannot be used as a predicate for this claim. Plaintiff also fails to allege injury in fact resulting from the alleged unfair competition.

The demurrer to this cause of action is **SUSTAINED with leave to amend.**

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant Bottini's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

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DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DOING DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The unopposed demurrer of Defendants Reuben J. Donig (Donig) and Law Office of Reuben J. Donig (Law Office, and collectively defendants) to the Verified First Amended Complaint (FAC) by plaintiff Diana Dunkelis (plaintiff) is **SUSTAINED with leave to amend**.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Twelfth Cause of Action

The demurrer to the twelfth cause of action for sexual favoritism harassment is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

“Sexual favoritism” means that another employee has received preferential treatment with regard to promotion, work hours, assignments, or other significant employment benefits or opportunities because of a sexual relationship with an individual representative of the employer who was in a position to grant those preferences. (Judicial Council of California Civil Jury Instruction 2521C.) The elements of a cause of action for sexual favoritism harassment are:

1. That [name of plaintiff] was [an employee of/an applicant for a position with/a person providing services under a contract with/an unpaid intern with/a volunteer with] [name of defendant];
2. That there was sexual favoritism in the work environment;
3. That the sexual favoritism was severe or pervasive;
4. That a reasonable [describe member of protected group] in [name of plaintiff]'s circumstances would have considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;
5. That [name of plaintiff] considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;